

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Amanda Harouche	Team: Squad #12	CCRB Case #: 201407759	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Tuesday, 07/29/2014 3:30 PM	Location of Incident: 2995 Marion Avenue	18 Mo. SOL 1/29/2016	Precinct: 48
Date/Time CV Reported Thu, 07/31/2014 12:18 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 07/31/2014 12:18 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Greaney	20646	947762	WARRSEC
2. DT3 Jason Wolfenhaut	03363	937749	WARRSEC
3. DT3 Douglass Adams	6756	937943	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Jason Wolfenhaut	Discourtesy: Det. Jason Wolfenhaut spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . DT3 Jason Wolfenhaut	Abuse: Det. Jason Wolfenhaut threatened § 87(2)(b) with the use of force.	B . Unsubstantiated
C . POM Michael Greaney	Force: PO Michael Greaney used physical force against § 87(2)(b)	C . Unsubstantiated
D . DT3 Douglass Adams	Force: Det. Douglass Adams used physical force against § 87(2)(b)	D . Unsubstantiated
E . POM Michael Greaney	Abuse: PO Michael Greaney threatened § 87(2)(b) with the use of force.	E . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

§ 87(2)(e), § 87(2)(f)

PO Greaney traveled to 305 § 87(2)(b) with Det. Douglass Adams and Det. Jason Wolfenhaut of Bronx Warrant Squad. When § 87(2)(b) saw the officers, he ran away from them. While running, PO Wolfenhaut was chasing after him on foot and allegedly said, “Stop running mother fucker before I shoot you” (**Allegation A and B**). § 87(2)(b) then ran into the vestibule of a building located at 2995 Marion Avenue in the Bronx. He was only able to get through the first set of doors of the vestibule and could not open the second set of doors. When § 87(2)(b) reached the second set of doors he turned around, faced PO Greaney, and raised his hands. § 87(2)(b) says he raised his hands with open palms and PO Greaney said § 87(2)(b) raised his hands in fists). PO Greaney then punched § 87(2)(b) in the face (**Allegation C**). Det. Adams then allegedly threw § 87(2)(b) onto the floor (**Allegation D**). § 87(2)(b) was then handcuffed and brought to the police van. In the police van, he was speaking to the officers and PO Greaney allegedly said, “Shut up before we beat you up again” (**Allegation E**). § 87(2)(b) was transported to the 48th Precinct stationhouse where he was handed over to PO James Grogan of the 48th Precinct Detective Squad. § 87(2)(b) was arrested. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

This case was filed by § 87(2)(b) § 87(2)(b) on behalf of § 87(2)(b) on July 31, 2014 (encl. 2b-c). § 87(2)(b) did not witness the incident and only heard about the incident through § 87(2)(b) therefore, he was not contacted for a statement. § 87(2)(b) also provided a written mailed complaint to the CCRB on July 30, 2014; the written complaint was postmarked on August 8, 2014 and sent to 40 Rector Street, the CCRB’s old address, the written complaint was eventually forwarded and the CCRB received this written complaint on August 27, 2014 (encl. 2a).

Mediation, Notice of Claim, and Criminal Histories

This case was not eligible for mediation. As of April 3, 2015, no Notice of Claim has been filed in regards to this incident (encl. 18a). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 1e).
- This is the first CCRB complaint filed by § 87(2)(b) (encl. 1f).
- Det. Wolfenhaut has been a member of the service for 10 years and there are no substantiated CCRB allegations against him (encl. 1d)
- Det. Adams has been a member of the service for 9 years and there are no substantiated CCRB allegations against him (encl. 1c).
- PO Greaney has been a member of the service for 6 years and there are three substantiated CCRB allegations against him. In case 201017328, a frisk and search were substantiated against him and he received instruction and no disciplinary action respectively. In case 201207978, physical force was substantiated against him for striking a male in the cheek area

and chest area with his forearms; he received charges for this case and the case is currently assigned to APU (encl. 1a-b).

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) alleged that the officer who chased after him on foot spoke discourteously to him and threatened him with the use of force during the chase. The investigation determined that Det. Wolfenhaut was the officer that chased after § 87(2)(b) on foot. § 87(2)(g)
- § 87(2)(b) alleged that the officer that threatened him with the use of force while he was being transported to the 48th precinct stationhouse was the officer that punched him. The I-Card investigative data report and both PO Greaney and Det. Adam's statements support the fact that PO Greaney punched § 87(2)(b) in the face. § 87(2)(g)
- § 87(2)(b) alleged that two officers were in the vestibule with him and that an officer different from the officer that punched him in the face threw him onto the floor of the vestibule after he was punched. The investigation determined that PO Greaney and Det. Adams were the only officers in the vestibule at the time § 87(2)(b) was being handcuffed. Since PO Greaney admitted that he punched § 87(2)(b) Det. Adams would have been the other officer in the vestibule with him. § 87(2)(g)

Investigation Findings and Recommendations

Allegation A – Discourtesy: Det. Jason Wolfenhaut spoke discourteously to § 87(2)(b)

Allegation B – Abuse of Authority: Det. Jason Wolfenhaut threatened § 87(2)(b) with the use of force.

Allegation D – Force: Det. Douglass Adams used physical force against § 87(2)(b)

Allegation E – Abuse of Authority: PO Michael Greaney threatened § 87(2)(b) with the use of force.

§ 87(2)(b) stated that while running away from the officers, the officer chasing him, Det. Wolfenhaut, said, "Stop running mother fucker before I shoot you." § 87(2)(b) also stated that Det. Adams picked him up in the vestibule of the building and threw him to the floor which caused his right arm to hurt afterwards. § 87(2)(b) stated that while being transported to the 48th Precinct stationhouse, he asked the officers for his asthma pump and PO Greaney told him "Shut up before we beat you up again" (encl. 3a-d)

The officers denied the allegations. PO Greaney and Det. Adams added that § 87(2)(b) fell to the floor on his own after PO Greaney punched him. By the time Det. Wolfenhaut caught up to the building, PO Greaney and Det. Adams were walking § 87(2)(b) to the police van so he did not see § 87(2)(b) on the floor of the vestibule (encl. 5a-f).

§ 87(2)(g)

Therefore, it is recommended that **Allegations A, B, and D** be closed as **unsubstantiated**.

Allegation C – Force: PO Michael Greaney used physical force against § 87(2)(b)

It is undisputed that § 87(2)(b) was wanted for a residential burglary and fled from the officers. While fleeing, § 87(2)(b) entered the vestibule of 2995 Marion Avenue but could not enter the building because the door leading into the lobby was locked. Inside the vestibule, PO Greaney punched § 87(2)(b) once in the head.

§ 87(2)(b) stated that upon realizing that the door leading into the lobby was locked, he turned to face the officers and put his hands up with his palms facing forward and said, “Chill, Chill, I’m only § 87(2)(b). PO Greaney then punched him in the left ear which caused him to hit the wall (encl. 3a-d). § 87(2)(b) stated that he went to § 87(2)(b) a few days after this incident but § 87(2)(b) § 87(2)(a) PHL § 18(6)

PO Greaney stated that § 87(2)(b) raised his hands in fists up to the front of his chest when he turned to face him in the vestibule. § 87(2)(b) did not say anything when he did this. As § 87(2)(b) raised his fists, PO Greaney punched § 87(2)(b) in the face, causing him to fall to the floor. PO Greaney punched § 87(2)(b) because he was scared § 87(2)(b) was going to punch him. PO Greaney punched § 87(2)(b) in the face because § 87(2)(b)’s hands were blocking his chest. PO Greaney injured his hand and was treated at § 87(2)(b) he was out line of duty for this injury for five days (encl. 4a-g).

Det. Adams stated that when he was approximately ten to fifteen feet behind PO Greaney, he saw § 87(2)(b) turn toward PO Greaney in an aggressive pose with closed fists as if he was going to punch PO Greaney. He then saw PO Greaney punch § 87(2)(b) once in the face on the chin (encl. 6a-e).

Det. Wolfenhaut was still en route to the building when PO Greaney punched § 87(2)(b) and did not witness anything (encl. 5a-f).

The I-Card investigative data statement that PO Greaney wrote says that § 87(2)(b) raised his fists in a threatening fashion and was immediately struck by PO Greaney which ended the threat (encl. 4c-d). § 87(2)(b) was charged with § 87(2)(b)

A photograph of the vestibule shows that it is a very small enclosed vestibule (encl. 1g)

Patrol Guide Procedure 203-11 states that only the amount of force necessary to overcome resistance will be used to effect an arrest (encl. a-b). An officer may use force when he or she reasonably believes that it is necessary to protect him or herself from the unlawful use of force. PD v. Gluck, Disciplinary Case No. 81586/06 (encl. f-q).

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that
Allegation C be closed as **unsubstantiated**.

§ 87(4-b) § 87(2)(g)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date